

**CHAPTER cxi.**

An Act to confirm a Provisional Order made by the Board of Education under Sections 17 (7) and 21 of the Education Act 1902 relating to the County Borough of Swansea. A.D. 1904.
[22nd July 1904.]

WHEREAS the Board of Education have under sections 17 (7) and 21 of the Education Act 1902 made the Provisional Order set out in the schedule to this Act and it is requisite that the same should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The following Order as set out in the schedule to this Act shall be and is hereby confirmed and from and after the passing of this Act shall have full validity and force. Confirmation
of Order in
Schedule.

2. This Act may be cited as the Education Board Provisional Order Confirmation (Swansea) Act 1904. Short title.

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SCHEDULE.

COUNTY BOROUGH OF SWANSEA.

Swansea. Provisional Order made by the Board of Education under Sections 17 (7) and 21 of the Education Act 1902 for the establishment and constitution of an Education Committee for the Council of the County Borough of Swansea under the said Act.

THE BOARD OF EDUCATION in pursuance of the powers conferred upon them by the Education Act 1902 and of all other powers enabling them in that behalf do order and it is hereby ordered as follows :—

1. An education committee of the Council of the County Borough of Swansea (hereinafter called "the Council") shall be established under the Education Act 1902 and such committee shall be called the Swansea Education Committee.

2. The committee when complete shall consist of twenty-five members appointed by the Council including persons of experience in education and persons acquainted with the needs of the various kinds of schools in the county borough of whom twenty-three shall be members of the council and two shall be women :

Provided that if at any time in the opinion of the Council a sufficient number of persons qualified as required by this Order cannot be found amongst the members of the Council the Council may enlarge the committee by the addition of no more than three members chosen by the Council from outside its own members :

Provided also that no person in receipt of a salary or other emoluments under the Council shall be eligible as a member of the committee.

3. The committee first appointed shall hold office until the meeting of the Council held for the appointment of committees next after the election of councillors for the county borough in November one thousand nine hundred and four and thereafter from year to year :

Provided that after the ordinary day of retirement of councillors the members of the committee shall continue in office on such committee until the first meeting of the newly elected Council held for the appointment of committees.

Save as aforesaid a member of the committee who ceases to be a member of the Council shall forthwith cease to be a member of the committee and a casual vacancy shall arise.

4. Any member of the committee who is incapacitated from acting or who shall notify in writing to the town clerk his wish to resign or shall for a continuous period of six calendar months be absent from all meetings of the committee except on the ground of illness or some other cause satisfactory to the Council or shall have a receiving order in bankruptcy made against him shall thereupon cease to be a member of the committee and a casual vacancy shall occur. A casual vacancy shall also occur on the death of any member of the committee.

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5. If and whenever a casual vacancy occurs the Council shall as soon as conveniently may be fill such vacancy and the person appointed thereto shall hold office until the day when the person in whose place he has been appointed would have ceased to hold office.

6.—(a) As from such day (being not more than eighteen months later than the twenty-sixth March one thousand nine hundred and three) as the Board of Education shall appoint the county governing body constituted under the Welsh Intermediate Education Act 1889 for the county borough of Swansea shall cease to exist and all powers duties property and liabilities of the governing body under any scheme made under the said Act of 1889 shall be transferred to the Council and references in any Act scheme or instrument to the county governing body shall be construed as references to the Council.

(b) All matters relating to the exercise of the powers so transferred shall stand referred to the committee in like manner as if they were matters relating to the exercise by the Council of their powers under the Education Act 1902 and subject to the provisions of the same Act the Council may delegate to the committee with or without restrictions or conditions any of the powers so transferred in like manner as if they were powers of the Council under the Education Act 1902.

Given under the seal of office of the Board of Education this
Fourteenth day of May One thousand nine hundred and four.

(L.S.)

J. C. G. SYKES

One of the Assistant Secretaries of the
Board of Education.

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